

25VECV03265 25VECV03265

County: los-angeles

Division: Civil Law and Motion

Department: T

Hearing date: 2026-09-04

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Case Number: 25VECV03265 Hearing Date: September 4, 2026 Dept: T

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James v Best Buy

Ex parte

application to continue trial AND maintain trial preference.

Here, after

fighting for a trial setting preference because the plaintiff is 92, and then vociferously

opposing defendant's request to continue the trial in July, plaintiff's counsel

wants a continuance into November without losing the trial setting preference

because she had debridement surgery of her knee last week. Why can't the plaintiff appear remotely? This is exactly the reason why priority was

granted; that is, unexpected health problems which could result in her death

before the trial can go forward. Aren't

those risks now increased because of her surgery and infection? Also, the Dr.'s declaration does not explain

why she cannot testify? Is she

sedated? Is she on pain medications 24

hrs a day? Can she walk? Can she come in a wheelchair? Is she on an IV? There is insufficient information to grant this request.